THE INDIAN NAVAL ARMAMENT ACT, 1923

ARRANGEMENT OF SECTIONS

SECTIONS

1. Short title, extent and commencement.
2. Definitions.
3. Restriction on building or equipping vessels of war.
4. Licences.
5. Offences.
6. Liability.
7. Seizure, detention and search of ships.
8. Procedure in forfeiture of ships.
9. Disposal of forfeit.
10. Special proof of relevant facts.
11. Penalties for proceeding to sea after seizure.
12. Power to enter dock-yards, etc.
13. Courts by which and conditions subject to which offences may be tried.
14. Indemnity.

THE SCHEDULE.—[*Repealed*.].

IndiaCode

THE INDIAN NAVAL ARMAMENT ACT, 1923

ACT NO. 7 OF 1923

[5*th March* 1923.]

AN ACT to give effect [1]*** to the Treaty for the Limitation of Naval Armament.

WHEREAS it is expedient to give effect [1]*** to the [2][Treaty for the Limitation of Naval Armament and for the Exchange of Information concerning Naval Construction signed in London on behalf of His Majesty on the twenty-fifth day of March, 1936]; It is hereby enacted as follows:-

1. Short title, extent and commencement.— (*1*) This Act may be called the Indian Naval Armament Act, 1923.

[3][(*2*) It extends to the whole of India except [4][the territories which, immediately before the 1st November, 1956, were comprised in Part B States].]

(*3*) It shall come into force on such date5 as the Central Government may, by notification in the Official Gazette appoint.

2. Definitions.— In this Act unless there is anything repugnant in the subject or context,—

(*a*) "competent Court" means the High Court or such other Court having unlimited original civil jurisdiction as the Central Government may declare to be a competent Court for the purposes of this Act;

(*b*) "ship" means any boat, vessel, battery or craft, whether wholly or partly constructed, which is intended to float or is capable of floating, on water, and includes all equipment belonging to any ship;

[6][(*bb*) "States" denotes all the territories [7][to which this Act extends]; and

[8][(*c*) "the Treaty" means the Treaty for the Limitation of Naval Armament and for the Exchange of Information concerning Naval Construction signed in London on behalf of His Majesty on the twenty-fifth day of March, 1936.]

3. Restriction on building or equipping vessels of war.— No person shall, except under and in accordance with the conditions of a licence granted under this Act,—

(*a*) build any vessel of war, or alter, arm or equip any ship so as to adapt her for use as a vessel of war; or

(*b*) despatch or deliver, or allow to be despatched or delivered, from any place in the States any ship which has been, either wholly or partly, built, altered, armed or equipped as a vessel of war in any part of His Majesty's Dominions or [9][of India] otherwise than under and in accordance with any law for the time being in force in that part [10]***.

---

1. The words "in the Provinces" rep. by the A. O. 1950.
2. Subs. by Act 2 of 1937, s. 2, for certain words.
3. Subs. by the A.O. 1950, for sub-section (*2*).
4. Subs. by the Adaptation of Laws (No. 3) Order, 1956, for "Part B States".
5. This Act was brought into force on the 10th November, 1923, *see* Gazette of India, 1923, Pt. I, p. 617.
6. Ins. by the A. O. 1950.
7. Subs. by the Adaptation of Laws (No. 3) Order, 1956, for "for the time being comprised within Part A States and Part C States".
8. Subs. by Act 2 of 1937, s. 3, for clause (*c*).
9. Subs. by the A.O. 1950, for "in a State in India".
10. The words "or State" omitted, *ibid.*

4. Licences.— (*1*) A licence under this Act for any of the purposes specified in section 3 may be granted by the [1][Central Government], and shall not be refused unless it appears to the [1][Central Government] that such refusal is necessary for the purpose of securing the observance of the obligations imposed by the Treaty; and, where a licence is granted subject to conditions, the conditions shall be such only as the [1][Central Government] may think necessary for the purpose aforesaid.

(*2*) An application for a licence under this section shall be in such form and shall be accompanied by such designs and particulars as the [1][Central Government] may, by general or special order, require.

[2][(*3*) Any person who, in pursuance of a licence granted under sub-section (*1*) before the commencement of the Indian Naval Armament (Amendment) Act, 1937 (2 of 1937), is engaged in building any vessel of war or in altering, arming or equipping any ship so as to adapt her for use as a vessel of war, or is about to despatch or deliver, or allow to be despatched or delivered, from any place within the States any ship which has been so built, altered, armed or equipped, either entirely or partly within the States, shall, upon written demand, furnish to the [1][Central Government] such designs and particulars as may be required by the [1][Central Government] for the purpose of securing the observance of the obligations imposed by the Treaty.]

5. Offences against the Act.— (*1*) If any person contravenes any of the provisions of section 3 [2][or fails to comply with the provisions of sub-section (*3*) of section 4]; he shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

(*2*) Where an offence punishable under sub-section (*1*) has been committed by a company or corporation, every director and manager of such company or corporation shall be punishable thereunder unless he proves that the act constituting the offence took place without his knowledge and consent.

(*3*) Nothing contained in section 517 or section 518 or section 520 of the Code of Criminal Procedure, 1898 (5 of 1898)[3], shall be deemed to authorise the destruction or confiscation under the order of any criminal court of any ship which is liable to forfeiture under this Act or of any part of such ship.

6. Liability of ships to forfeiture.— Any ship which has been, either wholly or partly, built, altered, armed or equipped as a vessel of war in the States in contravention of section 3, or in any [4]*** part of His Majesty's Dominions or [5][of India] in contravention of any like provision of law in force in that part [6]*** , shall, if found in the States, be liable to forfeiture under this Act.

7. Seizure, detention and search of ships.—(*1*) Where a ship is liable to forfeiture under this Act,—

(*a*) any Presidency Magistrate or Magistrate of the first class, or

---

1. Subs. by the A.O. 1937, for "L.G."
2. Ins. by Act 2 of 1937, s. 4.
3. *See* now of the-Code of Criminal Procedure, 1973 (2 of 1974).
4. The word "other" omitted by the A.O. 1950.
5. Subs., *ibid.,* for "any State in India".
6. The words "or State" omitted, *ibid.*

(*a*) any commissioned officer on full pay in the [1][Armed Forces of the Union], [2]*** or

(*b*) any officer of customs or police officer not below such rank[3] as may be designated in this behalf by the Central Government,

may seize such ship and detain it, and, if the ship is found at sea within the territorial waters of the States, may bring it to any convenient port in the States.

(*2*) Any officer taking any action under sub-section (*1*) shall forthwith report the same through his official superiors to the [4][Central Government].

(*3*) The [4][Central Government] shall, within thirty days of the seizure, either cause the ship to be released or make or cause to be made, in the manner hereinafter provided, an application for the forfeiture thereof, and may make such orders for the temporary disposal of the ship as it thinks suitable.

8. Procedure in forfeiture of ships.— (*1*) An application for the forfeiture of a ship under this Act may be made by, or under authority from, the [4][Central Government] to any competent Court within the local limits of whose jurisdiction the ship is for the time being.

(*2*) On receipt of any such application, the Court shall cause notice thereof and of the date fixed for the hearing of the application to be served upon all persons appearing to it to have an interest in the ship, and may give such directions for the temporary disposal of the ship as it thinks fit.

(*3*) For the purpose of disposing of an application under this section, the Court shall have the same powers and follow, as nearly as may be, the same procedure as it respectively has and follows for the purpose of the trial of suits under the Code of Civil Procedure, 1908 (5 of 1908), and any order made by the Court under this section shall be deemed to be a decree, and the provisions of the said Code in regard to the execution of decrees shall, as far as they are applicable, apply accordingly.

(*4*) Where the Court is satisfied that the ship is liable to forfeiture under this Act, it shall pass an order forfeiting the ship to Government:

Provided that, where any person having an interest in the ship proves to the satisfaction of the Court that he has not abetted, or connived at, or by his negligence facilitated, in any way, a contravention of section 3 in respect of the ship, and such ship has not been built as a vessel of war, it may pass such other order as it thinks fit in respect of the ship or, if it be sold, of the sale proceeds thereof:

Provided further that in no case shall any ship which has been altered, armed or equipped as a vessel of war be released until it has been restored, to the satisfaction of the [4][Central Government], to such condition as not to render it liable to forfeiture under this Act.

(*5*) The [4][Central Government] or any person aggrieved by any order of a Court, other than a High Court, under this section may, within three months of the date of such order, appeal to the High Court.

9. Disposal of forfeit.— Where a ship has been forfeited to Government under section 8, it may be disposed of in such manner as the [4][Central Government] [5]*** directs:

Provided that, where the ship is sold under this section, due regard shall be had to the obligations imposed by the Treaty.

1. Subs. by the A.O. 1950, for "military, naval or air service of His Majesty".
2. The words "or any Gazetted Officer of the Royal Indian Marine Service" rep. by the A.O. 1937.
3. *See* Gazette of India, 1924. Pt. I, p. 188.
4. Subs. by the A.O. 1937, for "L.G.".
5. The words "subject to the control of the G.G. in C." rep by the A.O. 1937.

10. Special proof of relevant facts.— If, in any trial, appeal or other proceeding under the foregoing provisions of this Act, any question arises as to whether a ship is a vessel of war or whether any alteration, arming or equipping of a ship is such as to adapt it for use as a vessel of war, the question shall be referred to and determined by the Central Government, whose decision shall be final and shall not be questioned in any court.

11. Penalties for proceeding to sea after seizure.— (*1*) Where a ship which has been seized or detained under section 7 or section 8 and has not been released by competent authority under this Act proceeds to sea, the master of the ship shall be punishable with fine which may extend to one thousand rupees, and the owner and any person who sends the ship to sea shall be likewise so punishable unless such owner or person proves that the offence was committed without his knowledge and consent.

(*2*) Where any ship so proceeding to sea takes to sea, when on board thereof in the execution of his duty, any officer empowered by this Act to seize and detain the ship, the owner and master shall further each be liable, on the order of the Court trying an offence punishable under sub-section (*1*), to pay all the expenses of and incidental to such officer being taken to sea, and shall further be punishable with fine which may extend to one hundred rupees for every day until such officer returns or until such time as would enable him after leaving the ship to return to the port from which he was taken.

(*3*) Any expenses ordered to be paid under sub-section (*2*) may be recovered in the manner provided in the Code of Criminal Procedure, 1898 (5 of 1898)[1] for the recovery of a fine.

12. Power to enter dock-yards, etc.— (*1*) Any person empowered by this Act to seize and detain any ship may, at any reasonable time by day or night, enter any dock-yard, ship-yard or other place and make inquiries respecting any ship which he has reason to believe is liable to forfeiture under this Act, and may search such ship with a view to ascertaining whether the provisions of this Act have been or are being duly observed in respect thereof, and every person in charge of or employed in such place shall on request be bound to give the person so empowered all reasonable facilities for such entry and search and for making such inquiries.

(*2*) The provisions of sections 101, 102 and 103 of the Code of Criminal Procedure, 1898 (5 of 1898)[2], shall apply in the case of all searches made under this section.

13. Courts by which and conditions subject to which offences may be tried.— No Court inferior to that of a Presidency Magistrate or Magistrate of the first class shall proceed to the trial of any offence punishable under this Act, and no Court shall proceed to the trial of any such offence except on complaint made by, or under authority from, the [3][Central Government].

14. Indemnity.— No prosecution, suit or other legal proceeding shall lie against any person for anything in good faith done or intended to be done under this Act.

THE SCHEDULE.—*Rep. by the Indian Naval Armament (Amendment) Act,* 1937 (2 *of* 1937), s. 6.

1. *See now* the Code of Criminal Procedure, 1973 (2 of 1974).
2. *See* now ss. 99 and 100 of the Code of Criminal Procedure, 1973 (2 of 1974).
3. Subs. by the A. O. 1937, for "L.G.".